

HCS HB 2637 -- TERMS OF SENTENCING

SPONSOR: Black

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Judiciary by a vote of 8 to 3. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 7 to 3.

The bill repeals a provision that does not consider an offender's first incarceration in a Department of Corrections long-term substance abuse program or 120-day program as a previous prison commitment for the purpose of determining a minimum prison term. The bill repeals provisions related to conditional release.

The bill adds to the definition of "dangerous felony": abuse through forced labor; labor and sex trafficking; sex trafficking of a child; and a third violation of failure to register as a sex offender. The bill removes the requirement that the victim of statutory rape in the first degree or statutory sodomy in the first degree be under 12 years old at the time of the commission of the offense for the offense to be a dangerous felony, and it clarifies that an offender convicted of a dangerous felony must serve 85% of the imposed sentence prior to being eligible for parole. The bill increases the minimum terms of imprisonment for rape in the first degree and statutory rape in the first degree.

The bill amends provisions related to minimum prison terms as follows:

- (1) For a class A felony, an offender must serve 70%;
- (2) For a class B felony, an offender must serve 50%;
- (3) For a class C felony, an offender must serve 40%; and
- (4) For a class D or E felony, an offender must serve 25%.

When a person is sentenced to an authorized term of imprisonment for a higher class than the offense for which the person was found guilty, the person will also be sentenced to the parole eligibility percentage of the higher class. The bill provides calculations for when consecutive or concurrent sentences are imposed by the court.

The bill modifies provisions related to credit for time served, including requiring the court to, when pronouncing sentence or

executing a suspended sentence or suspending the imposition of a sentence, record the number of days the person spent in prison, jail, or custody due to the offense after the offense occurred and before the pronouncement of the sentence or the suspension of imposition of the sentence. The jail time credit calculation will be pronounced at the time of the judgment, execution of a suspended sentence, or the suspension of imposition of sentence. Upon motion by the defendant, the court can also award jail time credit for any person who was held in a juvenile detention facility for an offense for which the person was subsequently certified to stand trial as an adult.

Currently, a sentencing court can, upon petition, reduce a term of sentence or probation or conditional release if the person is not a prior offender, a persistent offender, or an unclassified offender as defined in the section related to minimum terms of imprisonment. This bill repeals that authorization.

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPOSERS: Supporters say that this has been a work in progress for many years and there is cooperation between state departments. The bill is about transparency in sentencing and it can be confused with other valid measures but we need to try to keep it distinct. The purpose of the bill is so that when sentencing is handed down in court, everyone in the courtroom knows the minimum amount of time the person will serve before the person is eligible for parole. This includes the court, the victim, the defendant, the prosecutor, and members of the interested public. Many representatives have heard from constituents saying they know someone was sentenced to a certain amount of time in prison but they see the person out in much less time than anticipated. There is too much discretion and none of it is decided by statute. So, now, everyone will know the minimum. The judge needs to know what jail time credit is but the mechanism to do that isn't quite working out yet. There are ongoing discussions about this, including with Department of Corrections, and that Department is wholly on board with attempting to solve this problem. It wouldn't be effective until January 1, 2028, so kinks can be worked out before then. There are a few offenses that have their prison terms increased and those are some of the most heinous offenses. The bill removes the section related to prior commitments. Prosecutors currently ask for higher sentences to make sure that the people who need to stay in prison actually stay in, but they would not need to ask

for as much time if there is a guaranteed percentage an offender will have to serve. Good time credit will still remain part of the statutes and it would preserve the value of parole. We need longer prison sentences in Missouri to send a clear message that crime will not be tolerated here.

Testifying in person for the bill were Representative Black; Arnie Dienoff; Trevor Foley, Missouri Dept of Corrections; Locke Thompson, Missouri Prosecutors' Association; and Roye Cole.

OPPONENTS: Those who oppose the bill say that this is not a common sense reform; it is more likely to increase prison sentences because the percentages will be increased dramatically. Our state cannot afford increases in prison sentences. Taking the power of minimum prison terms out of Department of Corrections and giving it to the court is the right move, and that is how it was done prior to 2019. However, the bill will result in people serving longer prison terms and that is not what we need to preserve public safety and to lower crime. The Missouri prison system is doing the same thing over and over by thinking we are going to lower crime by giving longer prison sentences. We need to make our communities safer first. More faith needs to be put in the Parole Board and, just because an offender is eligible for a parole hearing does not mean he or she will be getting out. However the calculations for prison terms should not be left to Department of Corrections.

Testifying in person against the bill were Fwd.US, Inc.; Cliften Davis, MO Justice; ML Smith, Missouri Justice Coalition; American Civil Liberties Union of Missouri; and Gwen Smith, Empower Missouri.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.